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Case Number: 25PSCV03241 Hearing Date: September 22, 2026 Dept: G

Plaintiff/Cross-Defendant Jihong Guo and

Cross-Defendants Shaoxiong Zheng and Caixing Ma's Special Motion to Strike Defendant/Cross-Complainant Yuhang Li's Cross-Complaint Pursuant to the Anti-SLAPP Statute

Respondent:

Defendant/Cross-Complainant Yuhang Li

TENTATIVE

RULING

Plaintiff/Cross-Defendant

Jihong Guo and Cross-Defendants Shaoxiong Zheng and Caixing Ma's Special Motion to Strike Defendant/Cross-Complainant Yuhang Li's Cross-Complaint Pursuant to the Anti-SLAPP Statute is GRANTED IN PART and DENIED IN PART.

BACKGROUND

This

is an action for quiet title. Plaintiff/cross-defendant

Jihong Guo (Guo) and defendant/cross-complainant Yuhang Li (Li) allegedly both reside in China. In October 2022, Guo allegedly

purchased residential real property in La Puente, California from Li. Guo allegedly requested Li to hold legal title in the real property in trust for her until she can move to the United States, and Li allegedly orally agreed.

Guo allegedly used the property for living accommodations for her company's employees. In August 2025, Li

allegedly contacted the residents of the property representing himself as the owner and allegedly requested that they vacate the property to allow him to

rent it out to a tenant.

On

September 8, 2025, Guo filed the Complaint in this action, alleging causes of action for (1) quiet title, (2) constructive trust, and (3) declaratory relief.

On

May 19, 2026, Li filed a Complaint in an unlawful detainer action (case no. 26WCUD00839).

On

November 25, 2025, the court entered default against Li. On May 13, 2026, the court issued a default judgment against Li. On June 9, 2026, the court appointed cross-defendant Caixing Ma (Ma) as elisor to enforce the default judgment (Ma was not a party in this action at the time of appointment; Ma was solely Guo's counsel). On July 23, 2026, the court set aside the entry of default and vacated the default judgment.

On

July 24, 2026, the court consolidated this action and the unlawful detainer action.

On

August 3, 2026, Li filed a Cross-Complaint, alleging causes of action for (1) fraud (upon the court), (2) fraud (by intentional misrepresentation), (3) fraudulent concealment, (4) promissory fraud, (5) abuse of process, (6) intentional infliction of emotional distress, (7) fraud (by misuse of personal information), (8) breach of contract, (9) common counts, (10) cancellation of written instruments, (11) quiet title, (12) declaratory relief, (13) constructive trust, (14) permanent injunction, and (15) abuse of authority.

On

August 28, 2026, Guo and Ma (collectively, the Movants) filed this special motion to strike pursuant to the anti-SLAPP statute. On September 9, 2026, Li filed the opposition, and on September 15, 2026, the Movants filed the reply.

The

motion is set for hearing on September 22, 2026.

REQUEST

FOR JUDICIAL NOTICE

Li

requests that the court take judicial notice of documents filed in the United States District Court and the Superior Court of California. The court may take judicial notice of the records of any federal or California court.

(See Evid. Code, § 452, subd. (d).)

Thus,

the court takes judicial notice of the requested records.

EVIDENTIARY

OBJECTIONS

Li

objects to portions of the declaration of the Movants' counsel. The following objections are OVERRULED: 1–6.

The

Movants object to Li's requests for judicial notice. The following objections are OVERRULED: 1–10.

The

Movants also object to portions of Li's declaration. The following objection is SUSTAINED: 4 (lacks foundation and authentication).

The following objections are OVERRULED: 1–3, 5–39.

The

Movants finally object to portions of the declaration of Li's counsel. The following objections are OVERRULED: 1–9.

ANALYSIS

The

Movants seek to strike the first, fifth, sixth, and fifteenth causes of action of the Cross-Complaint pursuant to the anti-SLAPP statute. For the following reasons, the motion is GRANTED IN PART and DENIED IN PART.

Legal

Standard

California's

anti-SLAPP statute "is designed to protect defendants from meritless lawsuits that might chill the exercise of their rights to speak and petition on matters of public concern. To that end, the statute authorizes a special motion to strike claims arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue." (Wilson v. Cable News Network, Inc. (2019) 7 Cal.5th 871, 883–884, quoting Code Civ. Proc., § 425.16, subd. (b), cleaned up.)

"The special motion may be filed within 60 days of the service of the complaint or, in the court's discretion, at any later time upon terms it deems proper." (Code Civ. Proc., § 425.16, subd. (f).) "Anti-SLAPP motions are evaluated through a two-step process. Initially, the moving defendant bears the burden of establishing that the challenged allegations or claims arise from protected activity in which the defendant has engaged. If the defendant carries its burden, the plaintiff must then demonstrate its claims have at least minimal merit." (Park v. Bd. of Trustees of Cal. State Univ. (2017) 2 Cal.5th 1057, 1061, cleaned up.)

Discussion

Moving

Party's Burden: Allegations or Claims Arise from Protected Activity

The

Movants argue that the Cross-Complaint's first, fifth, sixth, and fifteenth causes of action arise from statements made before a judicial proceeding and in connection with an issue under consideration by a judicial body. The court agrees.

The

moving defendant bears the initial burden of establishing that the challenged claims arise from protected activity in which the defendant has engaged. (See Park, *supra*, 2 Cal.5th at 1061.) The Anti-SLAPP Statute defines this protected activity as "(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative,

executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.”

(Code Civ. Proc., § 425.16, subd. (e).)

The

first cause of action in the Cross-Complaint alleges that the cross-defendants “made, authorized, adopted, or caused to be made false representations and concealed material facts from the Superior Court. . . .” (XC, ¶ 86.)

The fifth cause of action alleges that the cross-defendants “misused judicial process for improper purposes . . . through false representations, concealment, and other wrongful conduct. . . .”

(XC, ¶¶ 113–114.) The sixth cause

of action alleges that the cross-defendants “misus[ed] judicial proceedings to obtain title in the [s]ubject [p]roperty.”

(XC, ¶ 118.) The fifteenth cause

of action alleges that the court appointed Ma as elisor and that Ma, acting as the elisor, “contact[ed] real estate agents, . . . marketing the [s]ubject [p]roperty for sale on the open market, negotiating a proposed sales price and terms, and

otherwise acting beyond the authority conferred by the [c]ourt. . . .” (XC, ¶ 157; see XC, ¶ 156.) Thus, the court determines that the

allegations asserted as the grounds for the first, fifth, sixth, and fifteenth causes of action arise from statements made before a judicial proceeding or in connection with an issue under consideration by a judicial body.

Since

the Movants demonstrate that the claims arise from protected activity, the burden shifts to Li to establish a probability of prevailing. (See Park, supra, 2 Cal.5th at 1061.)

Opposing

Party's Burden: Probability of Prevailing

Li

argues that he has a probability of prevailing on the Cross-Complaint's first, fifth, sixth, and fifteenth causes of action.

The court agrees in part and disagrees in part.

A

probability of prevailing means “a reasonable probability of prevailing, not prevailing by a preponderance of the evidence.”

(*Gerbosi v. Gaims, Weil, West & Epstein, LLP* (2011) 193

Cal.App.4th 435, 444.) To establish a

probability of prevailing, “the plaintiff must demonstrate that the [complaint] is legally sufficient and supported by a prima facie showing of facts to support a favorable judgment if the evidence submitted by the plaintiff is accepted.” (*Kenne v. Stennis*

(2014) 230 Cal.App.4th 953, 962.) The

plaintiff’s burden of establishing a probability of prevailing is not high, only requiring a showing of “minimal merit.”

(*Park, supra*, 2 Cal.5th at 1061; see *Overstock.com, Inc. v. Gradient Analytics, Inc.* (2007) 151 Cal.App.4th 688, 700.)

The court does not weigh credibility, nor does it evaluate the weight of the evidence; instead, it accepts as true all evidence favorable to the plaintiff and assesses the defendant’s evidence only to determine if it defeats the plaintiff’s submission as a matter of law. (See *Overstock.com, Inc., supra*, at 699–700; see also *Gerbosi, supra*, at 444.) A defendant’s evidence that a plaintiff’s claims are barred may defeat the plaintiff’s submission as a matter of law. (See *Gerbosi, supra*, at 447, finding that a defendant’s evidence that the plaintiff’s claims were time-barred meant that the plaintiff could not prevail on those causes of action.)

Regarding

the first, fifth, and sixth causes of action, according to Li’s declaration, the Movants’ representations to the court were knowingly untruthful or made with disregard for the truth when they obtained Li’s default and a default judgment. Even though the Movants knew, or had reason to know, that Li was in China and possessed his personal contact information, the Movants misrepresented to the court that they personally served Li in the United States and unsuccessfully attempted to contact him concerning the litigation. (See *Li Decl.*, ¶¶ 7–14, 24–26.)

Additionally, Li asserts in his declaration that Ma represented him in previous legal matters and learned confidential information through the representation. (See *Li Decl.*, ¶¶ 7–14, 24–26.) These assertions raise issues regarding whether Ma breached the duties he owes and owed to

current and former clients under the California Rules of Professional Conduct. (See Rules Prof. Conduct, rules 1.7(a), 1.9(a), 1.9(c).)

Thus, the first, fifth, and sixth causes of action have at least minimal merit.

Regarding

the fifteenth cause of action, according to Li's testimonial and documentary evidence, Ma listed the subject property for sale through his wife. (See Li Decl., ¶ 37; see also Li Decl., Attach. I, pp. 82–83.) Thus, the fifteenth cause of action has at least minimal merit.

Therefore,

the court finds that Li has a probability of prevailing. However, the court must also consider whether the defendant's submission nevertheless defeats the plaintiff's submission as a matter of law. (See Gerbosi, *supra*, 193 Cal.App.4th at 444.)

The Movants

argue that the claims in the Cross-Complaint's first, fifth, and sixth causes of action are subject to the litigation privilege. The court agrees.

The

litigation privilege applies to a communication made in a judicial proceeding or with some relation to a judicial proceeding.

(See Civ. Code, § 47, subd. (b)(2); see also *Rubin v. Green* (1993) 4 Cal.4th 1187, 1193, holding that "communications with 'some relation' to judicial proceedings" are "absolutely immune from tort liability.") "[T]he key in determining whether the privilege applies is whether the injury allegedly resulted from an act that was communicative in its essential nature."

(*Rubin*, *supra*, at 1196.)

The privilege immunizes liability from "all torts except malicious prosecution" and "has been applied specifically in the context of abuse of process claims alleging the filing of false or perjurious testimony or declarations." (*Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1057–1058.)

Here,

even though Li argues that the first, fifth, and sixth causes of action are not solely based on communicative conduct, the allegations in the Cross-Complaint

and the statements made in Li's declaration demonstrate that the claims are based on the Movants' representations to the court in obtaining Li's default and a default judgment. (See XC, ¶¶ 86, 113–114, 118, 156–157; see also Li Decl., ¶¶ 14, 26.) Thus, the litigation privilege immunizes the Movants from tort liability for their representations to the court.

Therefore,
Li demonstrates a probability of prevailing on the fifteenth cause of action but fails to establish a probability of prevailing on the first, fifth, and sixth causes of action.

Accordingly,
the special motion to strike is GRANTED IN PART as to the first, fifth, and sixth causes of action as to Guo and Ma and DENIED IN PART as to the fifteenth cause of action. Furthermore,
since Li discussed the possibility of counsel's disqualification, the court will SET an ORDER TO SHOW CAUSE RE: DISQUALIFICATION OF COUNSEL.

CONCLUSION

For
these reasons, the special motion to strike pursuant to the anti-SLAPP statute is GRANTED IN PART as to the first, fifth, and sixth causes of action of the Cross-Complaint against plaintiff/cross-defendant Jihong Guo and cross-defendant Caixing Ma and DENIED IN PART as to the fifteenth cause of action.

An ORDER
TO SHOW CAUSE RE: DISQUALIFICATION OF COUNSEL is SET for a date to be determined at the hearing in Department G (Pomona).